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The Lasting Legacy of Colonization in Puerto Rico

The invasion and subsequent conquest of Puerto Rico in 1898 forced the United States to change how it thought about its territory in a way that still impacts the island of Puerto Rico today. The first place the U.S. flag was raised outside a state, Puerto Rico has held a tenuous relationship with the federal government since the beginning (Márquez, 2015). This relationship is tracked, from 1898 to 2014, in the documentary *The Last Colony: Puerto Rico's Unique Relationship with the United States*, directed by Juan Agustín Márquez. In the documentary, Márquez begins with a brief overview of the history of American colonisation in Puerto Rico. He also discusses the first four plebiscite votes on the status of Puerto Rico; following along with the fourth, held in 2012, is the main focus of the film. Márquez frames the question of Puerto Rico's status as a human rights problem with economic implications, following the history of Puerto Rico from the *Insular Cases* to the reaction to the fourth plebiscite vote, demonstrating the colonial-era hold the U.S. federal government still claims over Puerto Rico. *The Last Colony* demonstrates that the current movement supporting change in the status of Puerto Rico has not arisen out of thin air. Rather, it is the culmination of over a century of colonial-style rule and discontent on the island.

In 1898, the United States gained control of Puerto Rico from Spain through the 1898 Treaty of Paris at the end of the Spanish-American War. Two years later, the Foraker Act (1900), designated Puerto Rico an unincorporated US territory with a presidentially-appointed governor (McClain, 2017, p. 16). Beginning in 1901, the U.S. Supreme Court ruled on a series of cases, collectively known as the *Insular Cases* in

which they ruled that the U.S. Constitution does not necessarily follow the flag in “insular cases,” i.e. territories of the United States (Márquez, 2015). In *Downes v. Bidwell* (1901), the Supreme Court ruled that the excise taxes clause of the Constitution does not apply to Puerto Rico, meaning they were not entitled to equal tax rates with U.S. states.

In the midst of the *Insular Cases*, Puerto Ricans were granted citizenship in 1917 via the Jones-Shafroth Act. The act also created a government within Puerto Rico that closely mirrored the federal government, with legislative, executive, and judicial branches, a bicameral legislature, a bill of rights, and gave the executive branch veto power. Unlike the U.S. Virgin Islands and Guam, fellow unincorporated territories, Puerto Rico derives its local power from its citizens through its branches of government. This caused Puerto Rico to operate more like an independent nation that receives external funding than as a subsidiary of the United States and is governed by federal legislation that is not derived from the consent of its people (Márquez, 2015). The *Insular Case Balzac v. Porto Rico* (1922) heavily limited Puerto Rican citizenship, determining that while the Jones Act made Puerto Ricans citizens, it did not incorporate Puerto Rico into the United States, denying Puerto Ricans the constitutional right to a jury. As a result of these rulings, the Supreme Court divided territories into two categories: incorporated territories and unincorporated territories. Incorporated territories, such as present-day Alaska and Hawaii, were intended to eventually become states (Márquez, 2015). In contrast, unincorporated territories, like Puerto Rico, were never intended to become states. Effectively, this denial of the typical rights of U.S. citizenship made Puerto Ricans second-class citizens.

In 1947, the Jones Act was amended, granting Puerto Ricans the right to elect their own governor and other officials, yet still no voting representation in Congress (García & Sanchez, 2021, p. 69). Five years later, Puerto Rico officially became a commonwealth of the United States, however there is no clear legal definition of this distinction, which is consistently brought up throughout the documentary as a point of contention by those wishing to change the status. The United States had clear logistical and political motives for keeping Puerto Rico as a colony (Márquez, 2015). At the time, South America was the center of U.S. foreign policy, meaning that Puerto Rico essentially served as the eastern gate to the Panama Canal, much like Hawai'i in the west. When the U.S. gained Puerto Rico from Spain, they also gained control over the Philippines, meaning that granting Puerto Rico statehood would bring the expectation of the same for the Philippines. Also, as a territory the U.S. can fund Puerto Rico as much as desired, regardless of the funding given to other territories. As a state, the federal government would have to fund Puerto Rico proportionally based on population, like the rest of the states. In essence, Puerto Rico was designed to be better off than other U.S. territories, but worse off than states.

In Puerto Rico, even the political parties are defined by the status of Puerto Rico they support, with the three major parties being *independentistas*, commonwealthers, and statehooders (Márquez, 2015). The history of Puerto Rico's relationship with the United States sets the stage for the fourth plebiscite vote in 2012. This election asked two questions, (1) "[d]o you agree that Puerto Rico should continue to have its present form of territorial status" and (2) "[r]egardless of your selection in the first question, please mark which of the following non-territorial options would you prefer" (Garrett, 2013, p. 6). In *The Last Colony*, Márquez presents viewpoints from each of the parties

representing in question two. These viewpoints come not only from party politicians, but also from everyday Puerto Ricans supporting the election. Márquez treats all of the voices equally, regardless of background, allowing the viewer to gain a comprehensive understanding of the political landscape in Puerto Rico without inserting bias with respect to claims of authority.

The statehood party argued that statehood is a natural political status for any U.S. citizen, and would guarantee equal rights and responsibilities for U.S. citizens in Puerto Rico (Márquez, 2015). Additionally, statehood would grant Puerto Rico equal political representation in Congress, providing more economic stability by having federal benefit programs as a natural right. This point is argued by Phillip Arroyo, chairman of the Hispanic Caucus for the Young Democrats of America, who states that the current status of Puerto Rico scares off potential investors because it does not appear as stable to investors (Márquez, 2015, 0:53:19). The *independentista* party argued that while the U.S. may aspire to be multicultural, it will never be multinational (Márquez, 2015). Puerto Rico's unique political structure makes it closer to a sovereign nation than a state, where statehood would risk the loss of culture and the sense of Puerto Rican identity. The sense of identity is the primary focus of the *independentistas*, rather than economics. Finally, the Sovereign Free Association State party argues that the current status of Puerto Rico is no longer viable economically or politically (Márquez, 2015). While the party agrees that the status must change, there is no clear understanding of what the party wishes to happen, that would have to be negotiated afterwards. Dr. Ángel Collado-Schwarz also argues that the aforementioned military and strategic reasons the U.S. had for being in the Caribbean in the 20th century no longer exist now that the U.S. is focused on the Middle East and Asia (Márquez, 2015, 1:01:11).

The party also sees it as beneficial for the U.S. for Puerto Rico to be self-sufficient while still maintaining a relationship as separate entities. Notably, the Popular Democratic Party asked for voters to vote yes to question one and then leave question two blank (Márquez, 2015).

The results of the fourth plebiscite vote received mixed interpretation from those in Puerto Rico and those on the mainland. For question one, 46.07% of voters voted yes, while 53.97% voted no, demonstrating a clear preference for changing the status of Puerto Rico (Márquez, 2015). Question two, however, generated much more controversy. 61.11% of voters chose statehood, 33.34% chose free association, and 6% chose *independentista* (Márquez, 2015). These percentages, however, do not factor in the 498,604 ballots that left question two blank, which is what the U.S. Congressional Committee focused on during its hearing on Puerto Rican status. This decision demonstrated the hesitance of the United States to change the status quo in Puerto Rico, as Pedro Pierluisi, Resident Commissioner of Puerto Rico, pointed out in the documentary. He stated that by law, both in Puerto Rico and in the rest of the U.S., empty ballots are not factored into election totals (Márquez, 2015, 1:21:08). Despite this, the Committee hearing stated that while it was clear that the majority of Puerto Ricans do not agree with the current status of Puerto Rico, it is not clear what the future of Puerto Rico should hold (Márquez, 2015). This reluctance of the federal government to accept the votes was predicted by Kenneth McClintock, the Secretary of State of Puerto Rico from 2008 - 2012, who said that the U.S. “will raise every excuse possible to deny Puerto Rico the right to vote on political status” (Márquez, 2015, 0:24:07).

In conclusion, Márquez demonstrates that while Puerto Rico today operates semi-autonomously of the United States, U.S. colonialist practices have prevented

Puerto Rico from realizing its full potential as an independent nation or as a state of the union. The middle ground of the commonwealth presents unique disadvantages to Puerto Rico, inhibiting its economic development and political standing while not acknowledging the responsibility the U.S. has for Puerto Rico.

References

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Extra notes:

A pro-commonwealth governor was elected, but a pro-statehood rep was sent to Congress

Those outside PR said that since the blank ballots made the statehood vote not a majority, the vote was invalid

August 1, 2013: Congressional Committee hearing

3 arguments: the plebiscite was fabricated to make a case for statehood, the US will not change PR status unless it's convenient for them, so it's up to PR, a majority of voters reject territorial status + the most voters want statehood + statehood holds a supermajority over other options

December 13, 2013: The Committee stated that it was clear that a majority of PR does not agree with the current status but that it was not clear what option should be done moving forward. Obama included 2.5 million in the federal budget for PR to hold a 5th plebiscite, the first federally funded one